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ase Number: 23SMCP00207 Hearing Date: July 7, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly Hills Courthouse | Department 205

LAUREN COOPER, as Trustee of THE SKY AIR TRUST DATED JUNE 3, 2020,

Petitioner,

v.

SKYLANE, a California limited company,

Respondent.

Case No.: 23SMCP00207

Hearing Date: 07/08/26

Trial Date: None

[TENTATIVE] RULING RE:

(1) Motion of Respondent Skylane LLC to Vacate the March 25, 2026 Arbitration Award; and

(2) Motion of Petitioner Lauren Cooper, as Trustee of the Sky Air Trust Dated June 3, 2020 to Confirm Arbitration Award

Background

This is a construction defect case involving alleged pool and HVAC defects, brought by the property's purchaser against the developer.

On April 17, 2023, Petitioner Lauren Cooper ("Petitioner") as Trustee of The Sky Air Trust Dated June 3, 2020 ("Trust") commenced this action against Respondent Skylane LLC ("Respondent") by filing a Petition for Order 1) Compelling Binding Arbitration; and 2) Appointing an Arbitrator (the "Petition").

On October 16, 2023, the parties indicated their intent to arbitrate, and the Court compelled the matter to arbitration.

On April 29, 2026, Petitioner filed the instant Motion to Confirm Arbitration Award.

On May 21, 2026, Respondent filed an Objection to Petitioner's Motion to Confirm Arbitration Award.

On May 22, 2026, Petitioner filed her reply in support of the motion, while Respondent filed a Motion to Vacate the March 25, 2026, Arbitration Award.

On May 28, 2026, the Court continued the hearing on Petitioner's motion to be heard on the same day as Respondent's motion on July 8, 2026.

On June 3, 2026, Petitioner filed her opposition to Skylane's motion.

On June 30, 2026, Respondent filed its reply.

Legal Standard

"Regardless of the particular relief granted, any arbitrator's award is enforceable only when confirmed as a judgment of the superior court." (O'Hare v. Municipal Resource Consultants (2003) 107 Cal.App.4th 267, 278.) "Once a petition to confirm an award is filed, the superior court must select one of only four courses of action: it may confirm the award, correct and confirm it, vacate it, or dismiss the petition." (EHM Productions, Inc. v. Starline Tours of Hollywood, Inc. (2018) 21 Cal.App.5th 1058, 1063.)

"It is well settled that the scope of judicial review of arbitration awards is extremely narrow." (California Faculty Assn. v. Superior Court (1998) 63 Cal.App.4th 935, 943.) "Neither the trial court, nor the appellate court, may 'review the merits of the dispute, the sufficiency of the evidence, or the arbitrator's reasoning, nor may we correct or review an award because of an arbitrator's legal or factual error, even if it appears on the award's face.' Instead, we restrict our review to whether the award should be vacated under the grounds listed in section 1286.2. [Citations.]" (Id.)

Code of Civil Procedure § 1286.2, subdivision (a), states, in pertinent part:

"Subject to Section 1286.4, the court shall vacate the award if the court determines any of the following:

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(1) The award was procured by corruption, fraud or other undue means. ٤٤

(2) There was corruption in any of the arbitrators. ٤٤

(3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator. ٤٤

(4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted. ٤٤

(5) The rights of the parties were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title. ٤٤

(6) An arbitrator making the award ... (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision”

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Only where both (1) the arbitrator abused his or her discretion and (2) there was resulting prejudice, can a trial court properly vacate an arbitration award. ٤ (SWAB Financial, LLC v. E*Trade Securities, LLC (2007) 150 Cal.App.4th 1181, 1198.) ٤٤

Analysis

Petitioner’s counsel attests to the following facts in support of the motion to confirm the arbitration award. On November 6, 2023, the Court appointed Hon. James A. Steele (Ret.) (the “Arbitrator”) to arbitrate the dispute. (Motion, Declaration of Andrew J. Haley (“Haley Decl.”), ¶ 6.) During arbitration proceedings, Petitioner pursued claims for: (i) Negligence (Construction Defect); (ii) Violation of the Right to Repair Act (Civ. Code §§ 895, et seq.); (iii) Negligent Misrepresentation; and (iv) Intentional Misrepresentation. (Haley Decl., ¶ 7.) On February 6, 2026, the Arbitrator issued an Interim Arbitration Award, and on March 25, 2026, the Arbitrator issued a Final Arbitration Award (“Final Award”). (Haley Decl., ¶ 8; Exh. 3 – a copy of the Final Award.)

Timeliness of Respondent’s Response to Petitioner’s Motion, and Respondent’s Motion to Vacate Arbitration Award

The parties dispute the timeliness of Respondent’s motion to vacate, which was filed on May 22, 2026, and the response to Petitioner’s motion to confirm the Final Award, which was filed on May 21, 2026.

Petitioner argues that the motion and the response had to be filed within 10 days of service of Respondent’s motion to confirm the Final Award. On the other hand, Respondent argues that its motion to vacate had to be filed by July 3, 2026 (i.e., within 100 days of March 25, 2026, the date the Final Award was issued).

“A request to vacate may be made either in a petition to vacate ([Code Civ. Proc.], § 1285) or in a response to the petition to confirm (id., § 1285.2).” (Law Finance Group, LLC v. Key (2023) 14 Cal.5th 932, 945.)

“Regardless of the method, the [California Arbitration Act] imposes the same deadline: ‘A petition to vacate an award ... shall be served and filed not later than 100 days after the date of the service of a signed copy of the award on the petitioner’ (id., § 1288), and identically, ‘[a] response requesting that an award be vacated ... shall be served and filed not later than 100 days after the date of service of a signed copy of the award’ on the respondent (id., § 1288.2).” (Law Finance Group, LLC v. Key, supra, 14 Cal.5th at p. 945.)

“[W]hen a filing both (1) responds to a petition to confirm, and (2) requests that the arbitration award be vacated, [two] deadlines apply: (1) Absent a written agreement or court order, the response must be filed within 10 days after service of the petition to confirm and (2) in any event, no later than 100 days after service of the award.” (Law Finance Group, LLC v. Key, supra, 14 Cal.5th at pp. 946–947; see Code Civ. Proc., § 1290.6 [“A response shall be served and filed within 10 days after service of the petition ...”].)

However, the 10-day deadline can be extended by the Court for good cause. (See e.g. Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 846–847 [“Lastly, Moss Bros. claims the factual allegations of its petition, including that Ruiz electronically signed the 2011 agreement, must be deemed admitted because Ruiz’s response was untimely served and filed. We disagree. ¶ Moss Bros. points to section 1290, which provides that ‘[t]he allegations of a petition are deemed to be admitted by a respondent duly served therewith unless a response is duly served and filed,’ and section 1290.6, which provides that ‘[a] response shall be served and filed within 10 days after service of the petition....’ But section 1290.6 also states that ‘[t]he time provided in this section for serving and filing a response may be extended ... for good cause, by order of the court.’ ¶ Courts have long acknowledged that the trial court may consider untimely filed and served response papers, when no prejudice to the petitioner is shown, without an order extending the 10–day time period of section 1290.6”].)

In addition, the 100-day deadline is not jurisdictional, and trial courts may grant relief from the deadline in appropriate circumstances. (See Law Finance Group, LLC v. Key, supra, 14 Cal.5th at p. 956 [“In sum, we see nothing in the ‘explicit statutory language’ nor in the ‘manifest policy underlying [the] statute’ demonstrating that the Legislature intended to reverse the usual rule and preclude the courts from applying traditional principles of equity to section 1288.2’s statutory deadline. [Citation.] We therefore hold that section 1288.2 is subject to both equitable tolling and claims of equitable estoppel”]; Ventura Coastal, LLC v. Occupational Safety & Health Appeals Bd. (2020) 58 Cal.App.5th 1, 31 [“Equitable tolling is a judicially created, nonstatutory doctrine that suspend[s] or extend[s] a statute of limitations as necessary to ensure fundamental practicality and fairness. The doctrine applies occasionally and in special situations to soften the harsh impact of technical rules which might otherwise prevent a good faith litigant from having a day in court” (internal quotations and citations removed)]; McGlynn v. State of California (2018) 21 Cal.App.5th 548, 561 [“The doctrine of equitable estoppel is founded on notions of equity and fair dealing and provides that a person may not deny the existence of a state of facts if that person has intentionally led others to believe a particular circumstance to be true and to rely upon such belief to their detriment. [Citation.] Generally speaking, four elements must be present in order to apply the doctrine... (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel had a right to believe it was so intended; (3) the other party must be ignorant of the true state of facts; and (4) he must rely upon the conduct to his injury”].)

Here, the Court finds that Respondent’s “response” to Petitioner’s motion to confirm was both a response to the motion and a request to have the arbitration award vacated. Petitioner’s response to the motion to confirm the award claims that Petitioner is “not ask[ing] the Court to vacate the award at this time. Respondent [is] only ask[ing] the Court to deny the Motion and refrain [from] confirming the arbitration award on the basis that there are open questions regarding whether the award is consistent with § 1286.2.” (Opposition, p. 3:16-19.) However, as stated earlier, “[o]nce a petition to confirm an award is filed, the superior court must select one of only four courses of action: it may confirm the award, correct and confirm it, vacate it, or dismiss the petition.” (EHM Productions, Inc. v. Starline Tours of Hollywood, Inc., supra, 21 Cal.App.5th at p. 1063.) Here, Respondent’s response to the motion to confirm does not ask the Court to correct, confirm, or dismiss the motion. Therefore, the Court finds that the response is asking the Court to vacate the award.

For those reasons, the Court agrees with Petitioner that the 10-day deadline applied to Respondent’s request to vacate.

Respondent’s response was not timely filed. Since Petitioner’s motion to confirm was served via electronic service on April 29, 2026, the 10-day deadline fell on Saturday, May 9, 2026, and, therefore, extended to Monday, May 11, 2026. (See Code Civ. Proc., § 12a, subd. (a) [“If the last day for the performance of any act provided or required by law to be performed within

a specified period of time is a holiday, then that period is hereby extended to and including the next day that is not a holiday. For purposes of this section, 'holiday' means all day on Saturdays, all holidays specified in Section 135 and, to the extent provided in Section 12b, all days that by terms of Section 12b are required to be considered as holidays").) The deadline was further extended by two court days due to the electronic service. (See *id.* § 1010.6, subd. (a)(3)(B) ["Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days ..."].) Which means the motion to vacate had to be filed by May 13, 2026, at the latest. Here, the response to the motion (which the Court has found is essentially a motion to vacate) was filed on May 21, 2026, making it untimely, and Respondent has not cited any law that allows it to extend the 10-day deadline by filing a motion to vacate within 100 days of service of the Final Award.

Respondent has not shown good cause to be relieved from the deadline. Neither its response to the motion to confirm the award nor its motion to vacate is accompanied by a declaration explaining the reason for the delay.

Therefore, the Court rejects Respondent's response to Petitioner's motion as untimely and denies the motion to vacate the Final Award.

Merits of the Motion to Vacate the Arbitration Award

Even if the Court were to find Respondent's motion to vacate timely, the Court would deny the motion on its merits. Respondent argues that the Final Award should be vacated because the Arbitrator exceeded his powers and Respondent was prejudiced when the Arbitrator allowed Petitioner to amend her arbitration demand to assert a new cause of action for intentional misrepresentation after the close of discovery and closing arguments. However, there is no declaration submitted attesting to those allegations. In addition, Respondent claims that in *Emerald Aero, LLC v. Kaplan* (2017) 9 Cal. App. 5th 1125 (*Emerald Aero*), the Court of Appeal "analyzed whether the addition of a claim less than 24 hours before the arbitration hearing constituted a violation of § 1286.2. The *Emerald* Court found that the late notice of the addition 'violated the parties' arbitration agreement because it was not reasonably calculated to inform [defendant] Kaplan of the punitive damages claim and precluded a fair arbitration proceeding." *Emerald* at 1130. [Respondent then argues that] [i]t stands to reason that if adding a claim less than 24 hours prior to presenting evidence is prejudicial, raising a new cause of action after the close of evidence is also prejudicial and 'outside the arbitrator's authority.'" (Motion to Vacate, pp. 7:15-8:2.) However, in *Emerald Aero*, the appellate court stated: "'Absent an express and unambiguous limitation in the ... submission to arbitration, an arbitrator has the authority to ... award any relief rationally related to his or her factual findings....'" [Citations.]" (*Id.* at p. 1140.) Here, the Arbitrator found "the additional claims are clearly based upon the same general set of facts" as those asserted in prior claims. (Declaration of Andrew Haley in Support of Opposition of Motion to Vacate, filed June 3, 2026, ¶ 3; Exh. 4 – a copy of the Arbitrator's "Ruling & Order Granting Claimant's Motion to Amend Demand for Arbitration According to Proof," p. 13, the first paragraph under the Conclusion section.) In addition, Respondent had the opportunity to fully brief its opposition to Petitioner's motion to amend. (*Id.* Exh. 3 – a copy of the opposition.)

Therefore, the motion to vacate the award is also denied on the merits.

Motion to Confirm the Arbitration Award

The Arbitrator issued a Final Award finding in favor of Petitioner as follows:

Claimant is awarded the principal sum of \$3,608,899.1618. In addition, Claimant is awarded \$286,635.60 in fees and costs for a total Award as of this date in the sum of \$3,895,534.76. Claimant is also entitled to recover post-Award interest calculated at 10% per annum until judgment is entered in a court of competent jurisdiction. Civil Code § 3287(a), *Pierotti v. Torian*, 81 Cal. App. 4th 17, 27 (2000) (post-Award, pre-judgment interest is mandatory in arbitration because "the arbitration award itself result[s] in a new and fixed liability (citation omitted)"). The fixed liability consists of the entire amount of the Award, i.e., damages on both claims, attorneys' fees, costs, and pre-Award interest. See, *Britz, Inc. v. Alfa-Laval Food Dairy Co.*, 34 Cal. App. 4th 1085, 1107 (1995) ('The arbitration award itself resulted in a new and fixed liability (citation omitted). Regardless of the individual elements that comprised that liability, respondents were entitled to payment of the fixed sum

upon issuance of the award').

This Final Award shall be in full settlement of all claims and counterclaims, if any, submitted to this Arbitration for determination. All claims and counterclaims not expressly granted herein are hereby DENIED. All issues, arguments, submissions, exhibits and testimony presented by the Parties have been considered by the Arbitrator regardless of whether they are expressly addressed in this Arbitration Award and pursuant to CCP §1283.4, this Award includes a determination of all questions submitted by the Parties in this arbitration, the decision of which is necessary in order to determine the controversy.

(Final Award, pp. 45:18-46:13 [footnote and bold emphasis removed].)

The Court has found no reason to vacate or correct the Final Award, or to dismiss the motion to confirm, and, therefore, grants the motion to confirm the award.

Conclusion

Based on the foregoing, the Motion of Respondent Skylane LLC to Vacate the March 25, 2026 Arbitration Award is DENIED.

The Motion of Petitioner Lauren Cooper, as Trustee of the Sky Air Trust Dated June 3, 2020 to Confirm Arbitration Award is GRANTED.

Dated: July 8, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court